RAMBAM'S INTRODUCTION TO THE MISHNAH

A Thousand Prophets, a Thousand and One Sages

Rambam's Intro to the Mishnah, Part 2

Source: The Rambam's Introduction to the Commentary on the Mishnah (Rav Shilat's edition), Part 2 of the introduction

Shiur: Part 2 of the series on the Rambam's Introduction to the Mishnah, given by Dayan Daniel Kada on Zoom, Tuesday 13 May 2025

These notes are based on the Sofer.ai transcript of the recording.

Recap

- The Rambam scatters **principles of faith** throughout his halachic works wherever he can. His four great introductions: the **Mishnah** (this series), **Avot** (done), **Perek Helek**, the **Mishneh Torah**.
- "If you understand this introduction, **your whole perspective on the Oral Law, the Talmud and the Mishnah changes.**"
- **Part 1:** every mitzvah came **with its explanation**, taught so that **everyone heard it four times**, over **forty years**, with a final **37-day review**. The tradition is **intact**.

So why so many disputes?

Talmudic disputes are a different thing from **later ones** (Rishonim, Acharonim, or today's question of **electricity on Shabbat**). The question here is: why can't you read a page of Mishnah or Gemara without *he says this, he says that*?

Why do we say *Eizehu Mekoman* every morning? Before Baruch She'amar we learn a little Torah (the Korbanot), a little Gemara (*Rabbi Yishmael*), and a little Mishnah. Of all the chapters on sacrifices, why **this** one? Because **it's the only chapter in Shas with no dispute.** No Rabbi Meir, no Rabbi Shimon; just straight halachah. Which shows how full of disputes everything else is.

The Rambam's answer (Part 1): nothing received from Sinai is disputed. Disputes arise only where something **wasn't** given to Moshe and had to be derived by **analysis and comparison** (*iyun vehekesh*).

Sukkah	
Two walls and a bit is enough	**Transmitted**: no dispute
Covered with **sechach** that can't contract impurity	**Transmitted**: no dispute
Minimum size	**Not transmitted → Beit Hillel vs Beit Shammai**

Whenever you see a dispute anywhere in Shas, it's something that was *not* handed down from Moshe.

The introduction has **eight parts**. Part 1 is done; tonight, **Part 2**, which "I want to finish tonight."

Part 2: A Prophet Has No Advantage in Interpreting Torah

ודע כי הנבואה אינה מועילה בעיון פירושה של תורה ובהוצאת ענפים בשלש עשרה מידות.

What Yehoshua and Pinchas could do, Ravina and Rav Ashi can do.

- **Yehoshua and Shmuel** are **exactly equal** to **Ravina and Rav Ashi**, the close of the Gemara 1,500 years ago, in how they derive law.
- **Two prophets vs three Sages: follow the three**, the majority.
- "The whole premise of Torah is **extrapolation**, and that's done through **intellect**. Not prophecy, not something spiritual or secret. **Using the wisdom Hashem gave us to bring out what we believe is the truth of Torah: that's what Torah is.**"

"These and these are the words of the living God"

The **Maharal** of Prague on **אלו ואלו דברי אלהים חיים**. People take it to mean "everyone's right." But some questions have **one objective answer**.

How many roofs did the Mishkan have? Tannaim disagree: three or four. "If I went back in time and looked, there was only one answer." Say it was three. **The one who said four is still *divrei Elokim chayim***, because **his method of deriving it is a true method of Torah study**, even if the answer is objectively wrong.

The proof from Birkat HaTorah: we follow it with **יברכך** so the blessing falls immediately on Torah. But you could say the blessing and then learn **opinions the halachah rejects**, or ones objectively wrong, and **you've still fulfilled the mitzvah**, "because the method of extrapolation was the true one. **That's what Torah is.**"

"So what *is* special about a prophet?"

חי נפשי: it is **one of the great principles on which our faith rests**.

But first the Rambam must explain the **kinds of prophecy** and **how a prophet is verified**, because many people err here, "even special people," meaning **Rav Saadia Gaon**, who held that a prophet is verified **by miracles**. The Rambam: **wrong**.

(From here the class switched to **Rav Shilat's text**, "basically the most precise one.")

The Four Kinds of Prophet

	Claims to speak	Message	Status
1A	**In the name of an idol** ("the sun / a star / Baal told me...")	Serve it	**False: chenek** (strangulation)
1B	**In Hashem's name**	**Serve an idol**	**False: chenek**
2A	**In Hashem's name**	Serve Hashem, **but adds, subtracts or reinterprets** a mitzvah, **attributing it to prophecy**	**False: chenek**
2B	**In Hashem's name**	Keep the Torah as given, plus **specific instructions** (go to war, don't)	**True, if verified**

1A and 1B: idolatry

We ask him for no sign. Even if he performs .(Re'eh) **והנביא ההוא או חלם החלום ההוא יומת** **miracles we've never heard of**: **כי מנסה ה' אלהיכם אתכם**, Hashem is testing you.

עדות השכל המכחיש טענתו חזקה מעדות העין הרואה מופתו

The testimony of reason that refutes his claim is stronger than the testimony of the eye that saw his miracle, since it is plainly proven that **only One may be served**.

"This is why, when people tell you *this rabbi did that, I saw him do this*: miracles are lovely, sometimes needed, Eliyahu and Elisha did them. **But they're no proof of who you are.**"

The Kotzker Rebbe on the Maariv line **אותות ומופתים באדמת בני חם**: "*miracles and wonders*" belong **"in the land of the children of Ham"**. Plenty of people do miracles. **It's irrelevant.**

2A: changing the Torah "because Hashem told me"

Examples:

- **Orlah:** "Hashem told me that from now on, wait **four** years, not three," or **two**.

- **Against tradition:** "*An eye for an eye* has always meant money; **Hashem has now told me** it means **literally** an eye."

the key words: **he attributes it to prophecy.** He is a false prophet, put to death **ויחס זה לנבואה**, by **chenek**, **because he ascribed to Hashem what He didn't say.**

Why? Moshe already told us: **לא בשמים היא**, it is not in heaven; and **בפיך ובלבבך לעשותו**: by your **mouth** (the verses we know) and your **heart** (our intellect, what we derive). Nothing else.

The crucial distinction. A **Sage** sees people being careless with orlah, waiting only two and a half years, and says *add a year as a safeguard*. **That's fine. That's what a Sage does**, not a prophet: **עשו סייג לתורה, ושמרתם את משמרתי**. Avraham, the Gemara says, kept even the rabbinic laws. "Just **make clear it's not from prophecy**."

Poultry and milk: a **prophet** who says *Hashem has now extended meat-and-milk to poultry* is **put to death**. A **rabbi** who says *Hashem forbids poultry and milk* isn't claiming prophecy, but he still **violates a prohibition** (as the Rambam writes in the Mishneh Torah) by ascribing to Hashem what He didn't say. **Once the Torah was given, it's ours to derive.**

"Hashem gives prophets messages like *should you go to war or not*. **He doesn't give messages on how to interpret Torah.**"

2B: the true prophet

He calls people to keep the Torah, promising reward and warning of punishment, **like Yeshayahu, Yirmeyahu, Yechezkel**, and gives **specific instructions** (*fight this city on this day*; *don't go to war today*).

- **Once verified**, ignoring him is **מיתה בידי שמים**, death at the hands of Heaven (Shoftim).
- **But** if he makes exactly these claims and **fails verification**, he's **put to death**, even though he only told people to do good. "**Being a prophet is a dodgy business.** More likely than not you'll be put to death."

How a Prophet Is Verified

(Shoftim) **וכי תאמר בלבבך איכה נדע את הדבר אשר לא דברו ה'... אשר ידבר הנביא בשם ה' ולא יהיה**

If he predicts in Hashem's name and it **doesn't** happen, he's not a prophet.

Note: the verse says only that a **failed** prediction disqualifies him, **not** that a fulfilled one qualifies him. So one or two hits leave him **in doubt**, **until he is right every time**, again and again (no number given). As with **Shmuel**: **וידע כל ישראל מדן ועד באר שבע כי נאמן שמואל לנביא לה'**.

Mark: isn't there a ***chazakah*** of three? **No.** "We don't find that. Three seems not to be enough."

Why that's possible: people asked prophets everything

In those days people went to the prophet for everything: **Shaul** went to **Shmuel** about **lost donkeys**. Why? Because the Torah forbids **astrologers, diviners and fortune-tellers**:

כי הגוים האלה אשר אתה יורש אותם אל מעננים ואל קסמים ישמעו, ואתה לא כן נתן לך ה' אלהיך. נביא מקרבך מאחיך כמני יקים לך ה' אלהיך, אליו תשמעון.

Prophet vs fortune-teller

	Fortune-teller / astrologer	Prophet
Predictions	**Sometimes right**, "necessarily"	**Right in everything**, small and great, always
Why some are "better"	**ויתרון זה על זה במיעוט שקרי אחד משקרי זולתו: one is a better liar than the other**	
One miss	Expected; they don't claim otherwise	**He's false**, and put to death: **לא יפל מדבר ה' ארצה**

Traders: "This is what good traders do. They know how the market's going to go, and that's how they become millionaires and billionaires. **The really good ones are almost always right, but they're sometimes wrong.**"

Bad news may be cancelled; good news may not

Prophesies	If it doesn't happen
Disaster (famine, war)	**Not false**: Hashem accepts **teshuvah** and relents (**ונחם על הרעה**). **Yonah**: *forty days and Nineveh is overturned*; they repented, and it wasn't
Specific good (no war this year, rain and plenty)	**False prophet**, to be executed: **בזדון דברו הנביא, לא תגור ממנו**, don't fear him for his past predictions

כל דבר שיצא מפי הקב״ה לטובה, אפילו על תנאי, אינו חוזר.

Yirmeyahu vs the false prophets: he prophesied **disaster**; they promised **all would be well**. "I'm safe," the Rambam has him say: if bad news doesn't come, Hashem relented. **But if your good news fails, you're false.**

Mark: so to be verified, you must be consistently right on **positive** predictions, since negatives can be "explained away"? **Correct**, or on negative ones that **do** happen. Unfulfilled bad predictions neither verify him nor diminish him.

Then why was Yaakov afraid of Esav?

Hashem had promised him: **ואנכי עמך ושמרתיך בכל אשר תלך**. The Sages: he feared **his sins** had cost him the promise. **The Rambam:** that can happen **to an individual**, for a **personal** promise. But a **public** prophecy, once spoken in Hashem's name, **must** come true.

The Prophet's One Real Advantage

Once verified, if he commands us to suspend any mitzvah, positive or negative, we must obey. Whoever disobeys is punished.

Doesn't this contradict 2A? The class answered: **temporarily**, and **it must lapse afterwards**.

בכל אם יאמר לך נביא עבור על דברי תורה שמע לו, חוץ מעבודה זרה.

Three conditions:

1	**Temporary** (*hora'at sha'ah*), never permanent
2	**Never idolatry**, not even "just for this hour"
3	**He makes clear it's a one-off.** Asked *are you overturning Moshe?*, he says *no, only now*

Examples

- **Eliyahu on Mount Carmel** offered a sacrifice **outside the Temple**, forbidden on pain of **karet** (**השמר לך פן תעלה עלתיך בכל מקום אשר תראה**). Asked by a beit din *may we do this in*

future?, he'd say **no, it's karet; I'm doing this once**, to refute the prophets of Baal.

- **Elisha** in the war with **Moav** told them to **cut down fruit trees**, despite **לא תשחית את עצה**. Asked *is this mitzvah annulled?*: if he said *forever*, death; *only now*: obey him.

The Rambam's striking example: Shabbat

A **verified** prophet (say Eliyahu or Shmuel) stands in the square on **Shabbat morning**: *everyone, men and women, light fires, take up arms, and go to war.* Not a life-threatening emergency; just *Hashem told me*.

We must get up at once, without delay, with alacrity and diligence, transgressing Shabbat, lighting fires, waging war, **and expect reward from Hashem** for doing so. **אליו תשמעון.**

"I'm an old man." One who considers himself pious, an elder "with his shtreimel and bekishe on Shabbat," who has **never broken Shabbat in his life**, says: *I don't dispute the prophet, but I won't go. Plenty of others can.* **He has transgressed Hashem's word and is liable to death at the hands of Heaven. The One who commanded Shabbat commanded us to obey the prophet**: **והיה האיש אשר לא ישמע אל דברי אשר ידבר בשמי, אנכי אדרש מעמו**.

But if, while lighting fires and readying weapons, someone **ties a knot** or **does the washing**, anything the prophet didn't command, he is liable to **stoning**. The prophet's instruction covers only what he said.

And the next week, the **same** prophet says: *Hashem told me the Shabbat boundary (techum) is now one amah less, 1,999 amot*, attributing it to prophecy, not reinterpreting. **He's a false prophet. We put him to death**, "that same prophet we all broke Shabbat for last week."

ובזה לבדו נבדל הנביא משאר בני אדם בתורה

In this alone does a prophet differ from everyone else regarding Torah.

Even the **greatest Sage or chief rabbi** who says *I feel Hashem wants us to break Shabbat today; I had a dream*: **forbidden**, unless he's a verified prophet.

In Interpretation: Just Another Sage

But in explaining the laws and their fine points, he is like the other Sages. If he gives an interpretation and the Sages another, and he says *Hashem told me mine is right*: **we don't listen to him.**

Even a thousand prophets, all like Eliyahu and Elisha, against a thousand and one Sages: אחרי רבים להטות. The halachah follows the 1,001 Sages, not the 1,000 great prophets.

- The Gemara: **אילו אמרה לי יהושע בן נון בפומיה, לא צייתנא ליה**: even if Yehoshua bin Nun said it himself, I wouldn't listen.
- **There is no adding to the Torah by way of prophecy.** A prophet who claims *my interpretation is right because I'm a prophet* is **another kind of false prophet, put to death**: **שאין תורה אחרת תבוא מאת ה'**.
- For understanding, we're never sent to prophets. The verse doesn't say *go to the prophet*, but **ובאת אל הכהנים הלוים ואל השופט אשר יהיה בימים ההם**: go to the Sage of your day.

Summary

1. **Disputes arise only where nothing was handed down** (e.g. the sukkah's minimum size). *Eizehu Mekoman* is the one dispute-free chapter.
2. **Prophecy gives no edge in interpretation.** Yehoshua = Rav Ashi; follow the majority of Sages. **אלו ואלו**: a rejected view is still Torah, **because its method is true**.
3. **Four kinds of prophet:** idol-prophets (1A, 1B), and the prophet who **changes the Torah in Hashem's name** (2A), are **put to death**, even with miracles. **Reason outweighs the eye.** A Sage may **add a safeguard**; a prophet may not **attribute** a change to prophecy.
4. **Verification: every** prediction must come true, small and great. Fortune-tellers are "better liars"; one miss makes a false prophet. **Bad news may be cancelled by teshuvah; good news never.**
5. **The prophet's one advantage:** a **verified** prophet may order a **temporary**, **non-idolatrous**, **explicitly one-off** suspension of a mitzvah (Eliyahu at Carmel, Elisha's trees, **war on Shabbat**), and we **must** obey. But one amah off the techum "from Hashem," and he's false.
6. **In interpreting Torah he's just another Sage: 1,001 Sages outvote 1,000 prophets.**

Coming Up

Next week: how the oral transmission continued, and how it became the written **Mishnah** and **Talmud**.

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